



CHAPTER cxli.

An Act to confirm a Provisional Order made by the Minister of Transport under the General Pier and Harbour Act 1861 relating to Whitehaven. A.D. 1930.
[1st August 1930.]

WHEREAS a Provisional Order made by the Minister of Transport under the General Pier and Harbour Act 1861 is not of any validity or force whatever until the confirmation thereof by Act of Parliament : 24 & 25 Vict.
c. 45.

And whereas it is expedient that the Provisional Order made by the Minister of Transport under the said Act and as amended set out in the schedule to this Act be confirmed by Act of Parliament :

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

1. The Order as set out in the schedule to this Act shall be and the same is hereby confirmed and all the provisions thereof in manner and form as they are set out in the said schedule shall from and after the passing of this Act have full validity and force. Confirma-
tion of
Order in
schedule.

2. Notwithstanding anything contained in the Whitehaven Town and Harbour (Incorporation) Act 1885 or the Whitehaven Harbour and Dock Act 1887 section eight of the said Act of 1887 shall henceforth be read and Amendment
of Act of
1887.

[Ch. cxli.] *Pier and Harbour* [20 & 21 GEO. 5.]
Order Confirmation (No. 1) Act, 1930.

A.D. 1930. construed as if the following subsection were inserted
— therein between subsections (1) and (2) namely :—

(1a) In forming or in aid of a reserve fund of five thousand pounds for the expenses of conducting managing and maintaining the harbour by setting aside in each half year beginning with the half year ending the thirtieth day of June one thousand nine hundred and thirty a sum of two hundred and fifty pounds with liberty to utilise as and when desired by the Commissioners the moneys or any part thereof from time to time standing to the credit of such fund for the purposes aforesaid.

and as if the following subsection were inserted therein between subsections (5) and (6) namely :—

(5a) In adding each half year to the amount standing to the credit of the before mentioned fund such sum as may be required to bring the amount of such fund up to five thousand pounds Provided always that if and whenever the said reserve fund having reached the sum of five thousand pounds shall be reduced by the application thereof or of part thereof in or towards the purposes aforesaid the payments provided for by subsections (1a) and (5a) shall be resumed until the fund shall again reach the sum of five thousand pounds and so from time to time as often as such reduction happens.

Short title.

3. This Act may be cited as the Pier and Harbour Order Confirmation (No. 1) Act 1930.

SCHEDULE.

A.D. 1930.

WHITEHAVEN.

Provisional Order to extend the duration of the Whitehaven Harbour Order 1924. *Whitehaven.*

1. This Order may be cited as the Whitehaven Harbour Order 1930. Short title.

2.—(1) In this Order the expression “the Commissioners” means the Whitehaven Harbour Commissioners acting under the Whitehaven Town and Harbour Acts 1708 to 1887 the expression “the harbour” means Whitehaven Harbour and the expression “the Order of 1924” means the Whitehaven Harbour Order 1924. Interpretation.

(2) “Authorised rates” and “authorised rate” mean respectively the rates or rate which the Commissioners are for the time being authorised to levy demand and recover in pursuance of the Whitehaven Town and Harbour Acts 1708 to 1887 and the Order of 1924 as extended by this Order.

(3) In the application to the harbour of the Harbours Docks and Piers Clauses Act 1847 the expressions “packet boat or Post Office packet” and “Post Office bag of letters” used in that Act shall mean respectively a vessel employed by or under the Post Office or the Admiralty for the conveyance under contract of postal packets as defined by the Post Office Act 1908 and a mail bag as defined by the same Act :

Provided that nothing in the Harbours Docks and Piers Clauses Act 1847 or in this Order shall exempt from regulation or control rates or duties any such vessel as aforesaid if she also conveys passengers or goods for hire.

3. Section 7 (Duration of Order) of the Order of 1924 is hereby repealed and on and from the fifteenth day of February one thousand nine hundred and thirty the Commissioners may levy the increase of rates on vessels authorised by section 3 and the increase of rates on coals authorised by section 4 of the Order of 1924 and the Commissioners may demand and recover such rates respectively. Duration of limit of and extension of Order of 1924.

[Ch. cxli.] *Pier and Harbour* [20 & 21 GEO. 5.]
Order Confirmation (No. 1) Act, 1930.

A.D. 1930.
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Whitehaven.
Revision of
rates.

4.—(1) If it is represented by application in writing to the Minister of Transport (in this section referred to as “the Minister”)—

- (a) by any chamber of commerce or shipping or any representative body of traders or any person who in the opinion of the Minister is a proper person for the purpose; or
- (b) by the Commissioners

that under the circumstances then existing the authorised rates or any of them should be revised the Minister if he thinks fit may make an order revising the authorised rates referred to in the application or any of them and may fix the date as from which such order shall take effect and thenceforth such order shall remain in force until the same expires or is revoked or modified by a further order of the Minister made in pursuance of this section. Provided that before making an order under this section the Minister shall cause an inquiry to be held with reference thereto in pursuance of the Board of Trade Arbitrations &c. Act 1874 as applied by this section.

(2) Where upon an application for revision of authorised rates or an authorised rate an order has been made or the Minister had decided not to make an order no further application for a revision of the rates or rate to which the application related shall be made within twelve months from the date of such order or decision as the case may be.

(3) The provisions of Part 1 of the Board of Trade Arbitrations &c. Act 1874 shall apply for the purposes of this section—

- (a) as if the Minister were referred to therein in lieu of the Board of Trade;
- (b) as if the person or persons duly authorised to hold any inquiry thereunder were the rates advisory committee constituted under the Ministry of Transport Act 1919 or any sub-committee thereof to which the said advisory committee may under section 2 of the Harbours Docks and Piers (Temporary Increase of Charges) Act 1920 have delegated their powers or in the event of the said advisory committee ceasing to exist some persons with similar qualifications to be appointed for the purpose by an order of the Minister under section 2 of the said Act of 1874; and
- (c) as if in section 4 of the said Act of 1874 the words “under the seal of the Minister of Transport” were substituted for the words “by writing under the hand of the president or of one of the secretaries of the Board.”

[20 & 21 GEO. 5.] *Pier and Harbour* [Ch. cxli.]
Order Confirmation (No. 1) Act, 1930.

(4) An application made to the Minister under this section shall be accompanied by such information and particulars as the Minister may consider relevant certified in such manner as he may require and the Minister and the body or persons holding an inquiry for the purposes of this section may call for such documents and accounts as they may consider relevant and may hear such witnesses as they shall think fit and shall have power to take evidence on oath and for that purpose may administer oaths :

A.D. 1930.

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Whitehaven.

Provided that the Minister may call upon the applicants or upon any person objecting to such application to furnish him with such information documents or accounts as he may consider relevant and that the applicants or objectors as the case may be shall have access to any such information documents or accounts before any inquiry in pursuance of subsection (1) hereof is commenced.

5. All costs charges and expenses of and incidental to the preparing obtaining and confirming of this Order and otherwise incurred in relation thereto shall be paid by the Commissioners. Costs of
Order.

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